

MASTER SERVICES AND CONSTRUCTION AGREEMENT

Sample Agreement for CFR Compliance Pipeline Testing (Fictional Parties)

This Agreement is entered into between Northbridge Municipal Works ("Owner") and Halstead Construction & Environmental Services LLC ("Contractor") for site remediation and facility construction services described in the attached scope of work.

SECTION 1. ENVIRONMENTAL WASTE DISPOSAL

Contractor shall dispose of all waste materials generated during the course of the Work in a manner consistent with applicable environmental laws. Contractor shall maintain records of waste disposal activities and make such records available to Owner upon request.

SECTION 2. HAZARDOUS MATERIALS HANDLING

Contractor shall identify, characterize, and segregate any hazardous waste encountered or generated during the Work. Prior to offsite transport, Contractor shall determine whether such waste meets the characteristics of ignitability, corrosivity, reactivity, or toxicity, and shall obtain an EPA identification number before any hazardous waste is shipped from the site. Contractor shall use only permitted transporters and disposal facilities.

SECTION 3. EQUAL EMPLOYMENT OPPORTUNITY

During the performance of this Agreement, Contractor agrees not to discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, gender identity, or national origin. Contractor shall take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to these protected characteristics.

SECTION 4. LABOR STANDARDS AND WAGES

Contractor and all subcontractors performing work under this Agreement shall pay laborers and mechanics employed directly on the site of the work no less than the wage rates set forth in the wage determination attached as Exhibit C. Contractor shall submit weekly certified payroll records to Owner for the duration of construction activities.

SECTION 5. OCCUPATIONAL SAFETY AND HEALTH

Contractor shall maintain a safe working environment for all personnel and shall comply with applicable occupational safety and health standards governing construction activities, including excavation, fall protection, scaffolding, and hazard communication. Contractor shall designate a competent person to conduct daily site safety inspections.

SECTION 6. AIR EMISSIONS AND DUST CONTROL

Contractor shall take reasonable measures to control fugitive dust and particulate emissions generated by demolition, excavation, and material handling activities, including but not limited to water spraying, covering of stockpiles, and covering of haul trucks.

SECTION 7. CONFIDENTIALITY

Each party shall keep confidential any proprietary or non-public information disclosed by the other party in connection with this Agreement, and shall not disclose such information to any third party without the prior written consent of the disclosing party, except as required by law.

SECTION 8. INDEMNIFICATION

Contractor shall indemnify, defend, and hold harmless Owner, its officers, employees, and agents from and against any claims, damages, losses, and expenses arising out of or resulting from Contractor's performance of the Work, except to the extent caused by Owner's own negligence.

SECTION 9. TERMINATION

Owner may terminate this Agreement for convenience upon thirty (30) days' written notice to Contractor. In the event of termination for convenience, Contractor shall be compensated for Work satisfactorily performed up to the effective date of termination.